

Fictional Published Opinion Granting Petition in Part

United States Court of Appeals for the Fourth Circuit

In re Cinder Lake Health Network, Inc., Petitioner

Related district action: *Rhea Calder v. Cinder Lake Health Network, Inc.*

Docket: SYN-CA4-26-WR-4401

Document code: A17

Filed: 2026-05-05

Before Judges Alder, Vale, and Fen; Judge Alder presiding.

Per curiam.

Opinion and disposition

The panel grants the petition in part, vacates the categorical-waiver and complete-production provisions, denies a blanket discovery bar, and remands for document-specific review.

The court's result is issue specific. It grants extraordinary relief as to categorical waiver and forced complete production, denies the broader discovery prohibition, and returns unresolved privilege claims to the district court. Publication makes the Court's reasoning and the limits of relief available together with the judgment entered today.

Factual and procedural history

The opinion traces the August 21 public response, January 9 Rule 502(d) order, sealed exchange and filing chronology, March 25 order, and failed district preservation efforts.

Calder's report, the outside-counsel review, the August response, and the later discovery dispute are recounted only to decide the writ. Ashe received and retained the complete memorandum on January 29 and the complete log on February 5 as protected offline review copies. She did not receive the twenty underlying logged items or attachments before the March 25 order.

Rule 502(d) timing

The protective order governs later litigation disclosures but neither erases nor creates waiver from the pre-suit letter. The district court must keep those time periods distinct.

Rule 502(d) allowed the district court to govern the effect of later litigation disclosures. It did not exist when the August response was sent and says nothing about whether that public letter contained privileged substance. The panel therefore rejects any reasoning that uses the order either as retroactive immunity or as evidence that pre-suit waiver necessarily occurred.

Original-writ authority

28 U.S.C. § 1651(a) and *Cheney v. U.S. District Court*, 542 U.S. 367, 380–81 (2004), permit extraordinary relief only when no adequate means exist, the right is clear and indisputable, and issuance is appropriate.

The All Writs Act does not supply free-ranging supervisory power. Cheney’s conditions remain demanding, and mandamus is not a substitute for routine appeal. *In re Murphy-Brown, LLC*, 907 F.3d 788, 795–97 (4th Cir. 2018), applies those limits in this Circuit. The court evaluates them against the compelled-disclosure record while preserving *Mohawk Industries, Inc. v. Carpenter*, 558 U.S. 100, 108–11 (2009), for routine privilege disputes.

No adequate means

First compelled delivery of the twenty underlying logged communications, drafts, work product, and attachments would create adversary knowledge that ordinary postjudgment review cannot erase. The April 1 deadline made that loss concrete.

Mohawk's ordinary postjudgment review remains the baseline. Ashe's protected review of the memorandum and log did not supply the twenty underlying communications, full drafts, work product, or attachments. Compelled delivery of those items before final judgment would create new adversary knowledge that use restrictions cannot erase. That record-specific loss leaves no adequate alternative for the challenged production.

Production vacatur and remand

The command compelling all twenty logged items, underlying communications, drafts, work product, the complete memorandum, and attachments is vacated. The district court must assess each claim rather than compel the protected set categorically.

Vacatur restores the item-specific questions the categorical ruling displaced: which underlying entries are privileged, which reflect work product, what facts can be segregated, and whether any specific waiver occurred. The opinion does not disturb Ashe's protected review copies or decide individual claims. It removes the compelled-production directive so the district court can perform controlled review.

Disclosure requirement

The August 21 letter announced that counsel reviewed concerns and that Cinder Lake adopted remediation; it disclosed no advice, interview statement, or other privileged communication.

The letter's full public text is decisive. It says counsel reviewed Calder's reported billing concerns and the organization adopted identified measures. It does not recount an employee statement, convey counsel's advice, or reveal a legal conclusion. A common topic may establish relatedness only after some protected information has actually been disclosed.

Rule 502(a)

Without an intentional disclosure of privileged information, the same-subject and fairness conditions do not establish categorical subject-matter waiver.

Rule 502(a) requires intentional disclosure, undisclosed material concerning the same subject, and fairness requiring joint consideration. The district court began with subject and fairness while assuming disclosure from context. Because the first element is absent on the record before this Court, the opinion vacates the categorical result without deciding how the other elements would apply to a different communication.

Related-discovery scope

Correction of the waiver ruling does not shield underlying facts, business records, employee knowledge, or every related request. A blanket discovery bar is denied.

Underlying billing facts, claim data, employee observations, and nonprivileged remedial decisions do not become protected merely because counsel investigated them. Calder may continue to seek those matters through proportionate requests and proper conferral. The writ is denied to the extent Cinder Lake asked the panel to bar all discovery connected to the investigation's subject.

Upjohn boundary

Privilege protects confidential communications for legal advice, not facts obtainable from their original sources. The remand must preserve that distinction.

Upjohn Co. v. United States, 449 U.S. 383, 389–97 (1981), protects confidential employee communications made for corporate legal advice but preserves discovery of facts from original sources. On remand, the district court may distinguish an employee’s knowledge from what the employee told counsel and separate ordinary records from counsel’s selection or impressions. Corporate possession alone answers neither question.

Sky Angel and Hawkins

Sky Angel U.S., LLC v. Discovery Communications, LLC, 885 F.3d 271, 276–77 (4th Cir. 2018), directs attention to actual disclosure; Hawkins v. Stables, 148 F.3d 379, 383–85 (4th Cir. 1998), confirms the proponent's burden. Neither supports waiver based only on a shared topic.

Sky Angel reinforces that waiver analysis depends on the information revealed, not a broad thematic resemblance. Hawkins assigns Cinder Lake the burden to establish privilege and permits close testing of its log. Reading them together supports entry-specific scrutiny, but not the district court's assumption that public reference to counsel waived an entire investigation.

Fluor's limited use

In re Fluor Intercontinental, Inc., No. 20-1241, 2020 WL 1472076 (4th Cir. Mar. 25, 2020) (unpublished), is nonprecedential. Its persuasive value extends only to the close analogy of no disclosed communication paired with a seven-day production command.

We consider only the persuasive similarity between a disclosure that conveyed conclusions rather than communications and a seven-day order requiring broad production. Fluor's unpublished, nonprecedential status means it does not establish the legal test, supersede Mohawk, or relieve Cinder Lake of satisfying Cheney on this particular record.

Clear and indisputable right

On the record before this Court, the district court's categorical premise cannot be reconciled with the missing disclosure and the communications-facts distinction.

The district court's categorical premise eliminates the communication-content inquiry required by Rule 502(a) and Upjohn. Because the letter and protected materials are before the panel in aligned public and sealed form, the absence is not an unresolved factual gap. The right is clear only as to categorical waiver and complete production, not every individual claim.

Appropriateness

Cinder Lake sought reconsideration and a district stay, and the appellate stay preserved the issue. Narrow correction is appropriate without supervising the entire discovery docket.

Cinder Lake presented the distinction on reconsideration, sought a district stay, and then requested narrowly tailored appellate preservation. The panel can correct the specific provisions without managing depositions, rewriting requests, or deciding retaliation. Those circumstances make partial issuance appropriate while counseling against the broader discovery prohibition.

Scope of writ

The writ reaches the categorical-waiver and complete-production provisions only. It does not decide every log entry or prohibit document-specific discovery.

The writ directs the district court to vacate the identified categorical language and the April 1 complete-production requirement. It does not order any particular log entry withheld permanently. On remand the parties must confer, Cinder Lake must support claims, Calder may challenge them, and the court may select lawful review procedures.

Blanket relief denied

The request is denied insofar as it would prevent Calder from seeking original facts, business records, or other nonprivileged evidence through ordinary district procedure.

Calder remains entitled to discover facts from employees and records and to challenge whether particular documents were created for legal advice or in anticipation of litigation. Denying the blanket component prevents privilege from becoming control over a subject matter. The partial denial is final and is reflected separately in the judgment.

Protected-record treatment

Public and sealed counterparts remain governed by the existing access orders. A citation to a corresponding public page does not itself authorize access to sealed material.

Sealing remains procedural and narrowly tied to protected content. The public counterparts preserve the legal reasoning, dates, and nonprivileged evidence; sealed counterparts remain available only to persons whom the Court has authorized. This opinion does not order the district clerk to provide electronic sealed access and does not treat a public citation as independent authority to inspect protected material.

Conclusion

The petition is granted in part and denied in part; challenged provisions are vacated as stated; the case returns for document-specific proceedings consistent with this opinion.

The court grants the writ in part, denies it in part, vacates only the specified order provisions, and remands. The interim stay has served its preservation purpose and the final judgment states the operative result. Post-disposition administration follows Rule 21 transmittal and the Rule 40 period; an original proceeding does not produce a mandate.

All people, entities, events, documents, and identifiers in this source are fictional. Nothing here is legal advice or a filing in any real court.